

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Numbers 2009-003429 & 2009-003443

ORDER OF SUMMARY SUSPENSION

IN THE MATTER OF SUMMARY SUSPENSION PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF
COLORADO OF HECTOR VILLALOBOS, LICENSE NO.: LPC-4677,

Respondent.

TO: HECTOR VILLALOBOS, LPC

The State Board of Licensed Professional Counselor Examiners ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS:

1. Hector Villalobos, ("Respondent"), has been licensed as a licensed professional counselor in the State of Colorado beginning on June 14, 2007, through all times relevant to this matter.
2. The Board has jurisdiction over the person of Respondent and the subject matter herein.
3. On July 31, 2009, the Board concluded that reasonable cause existed to believe that Respondent is unable to practice with reasonable skill and safety to patients and ordered that Respondent submit to a "mental status evaluation" conducted by Dr. Walter Simon, Ph.D. and Dr. Kristen Craine, Psy.D. pursuant to §12-43-224(2)(d), C.R.S.
4. On September 8, 2009, Respondent met with Walter Simon, Ph.D. and Kristen Craine, Psy.D. for the mental status evaluation.
5. On September 15, 2008, Dr. Simon and Dr. Craine sent a report to the Director of the Board indicating that the Respondent is unsafe to practice as a licensed professional counselor at this time. These findings may be used in any board initiated proceedings or within that Board's jurisdiction in any forum, §12-43-224 (2)(f), C.R.S.
6. Reasonable grounds exist to believe, and the Board so finds, that Respondent has engaged in activities prohibited by §12-43-222(1)(f), C.R.S., which states that it is a violation of this article if such person has a physical or mental disability that renders such person unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons

under such person's care. The prohibited activities are set forth in the Notice of Charges attached hereto and incorporated herein by reference.

7. On September 25, 2009, the Board conducted a regularly scheduled meeting and discussed the report submitted by Dr. Simon and Dr. Craine regarding the mental status of Respondent and concluded emergency action needed to be taken.

8. Based on the information contained within the mental status report and the findings of Dr. Simon and Dr. Craine, the Board finds that the public health, safety and welfare is at risk and that the Respondent's license to practice as a professional counselor in the State of Colorado must be summarily suspended until such time as the Board has determined that Respondent no longer poses a risk to the public.

9. Respondent's license to practice as a professional counselor is hereby suspended beginning upon the effective date of this Order. During the period of suspension, Respondent shall not engage in the practice of professional counseling in the State of Colorado and will not hold himself out as a licensed professional counselor in the State of Colorado.

10. Any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

11. This Order is final. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

12. Respondent shall obey all state and federal laws while this Order is in effect.

13. This Order shall become effective when accepted and signed on behalf of the Board by the Director of said Board.

14. This Order shall be a public record in the custody of the Board.

IT IS FURTHER ORDERED, that under §§24-4-104(4) and 24-4-105(12), C.R.S., the license of Hector Villalobos to practice as a licensed professional counselor in the state of Colorado be summarily suspended until such time as these proceedings should be further disciplined in accordance with §§12-42-221, 12-42-222, 12-43-223 and 12-43-224, C.R.S.

Pending further outcome of said proceedings, IT IS FURTHER ORDERED that Hector Villalobos immediately cease, desist and refrain from performing any form of licensed professional counseling or any act constituting mental health counseling or other acts which he is licensed to engage in pursuant to his licensure as a licensed professional counselor in the State of Colorado.

DATED this 8th day of October, 2009.

Carlotta Knox

Carlotta Knox
Program Director
State Board of Licensed Professional
Counselor Examiners